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Convention on the Rights of Persons with Disabilities

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Committee on the Rights of Persons with Disabilities

Report on follow-up to the inquiry concerning Spain carried out under article 6 of the Optional Protocol to the Convention

Report of the Committee*

I. Introduction

1. During its eighteenth session, held in Geneva from 14 August to 1 September 2017, the Committee adopted its report on the inquiry concerning Spain carried out under article 6 of the Optional Protocol to the Convention.[1] In that report, the Committee concluded that the findings of the inquiry indicated grave or systematic violations within the meaning of article 6 of the Optional Protocol and rule 83 of the Committee's rules of procedure. The Committee transmitted the report, in which it made a number of recommendations, to the State party. On 25 May 2018, the State party submitted its observations on the Committee's report.[2] Following the six-month period given to the State party to submit its observations, both the report and the observations were issued by the Committee.

2. In a note verbale dated 27 October 2023, the State party was invited to participate in a follow-up dialogue on the inquiry report, to be held in Geneva on 18 March 2024, during the Committee's thirtieth session, scheduled to take place from 4 to 22 March 2024.

3. The Committee thanks the State party for sending a high-level delegation to the follow-up dialogue, which took place in public session at the Committee's 709th meeting, on 18 March 2024.[3] At the same meeting, the Committee also engaged separately with representatives of organizations of persons with disabilities and the Spanish Committee of Representatives of Persons with Disabilities. In 2011, the State party formally designated the latter as an independent monitoring mechanism pursuant to article 33 of the Convention.

II. Developments in the State party

4. This chapter describes the main developments in the State party since 2017, when the Committee adopted its report on the inquiry carried out under article 6 of the Optional Protocol. It is based on information submitted by the State party, organizations of persons with disabilities and the Spanish Committee of Representatives of Persons with Disabilities, together with statistics compiled by the Committee from official sources.

* Adopted by the Committee at its thirtieth session (4–22 March 2024).

[1] CRPD/C/ESP/IR/1.

[2] CRPD/C/ESP/OIR/1.

[3] CRPD/C/SR.709.

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A. Developments reported by the State party

1. Legislative measures

5. The State party provided information on the amendment of article 49 of the Spanish Constitution in January 2024 and on the adoption of Organic Act No. 3/2020 of 29 December amending Organic Act No. 2/2006 of 3 May on Education.[4]

6. The State party also reported on other legislative measures adopted subsequent to Organic Act No. 3/2020, including Organic Act No. 3/2022 of 31 March on the Organization and Integration of Vocational Training, Royal Decree No. 659/2023 of 18 July on the Development of the Vocational Training System and several royal decrees establishing new preschool, primary, lower secondary and upper secondary curricula (Royal Decrees No. 95/2022 of 1 February, No. 157/2022 of 1 March, No. 217/2022 of 29 March and No. 243/2022 of 5 April).

7. The State party further reported on other legislative measures not directly related to education but affecting inclusive education, such as Organic Act No. 8/2021 of 4 June on the Comprehensive Protection of Children and Adolescents against Violence; Act No. 6/2022 of 31 March amending the revised text of the General Act on the Rights and Social Inclusion of Persons with Disabilities; and Organic Act No. 2/2023 of 22 March on the University System.

2. Measures included in the Spanish Strategy on Disability

8. According to information provided by the State party, the Spanish Strategy on Disability consists of four pillars and one cross-cutting element. It addresses various education and training challenges and provides for strategic measures, including the development of the plan envisaged in the fourth additional provision of Organic Act No. 3/2020 to ensure that, within 10 years, mainstream schools have the resources they need to provide the best possible education to students with disabilities.

3. Other strategies

9. The State party also reported on two other specific strategies promoted by the National Council on Disability: the First Action Plan under the Spanish Strategy on Autism Spectrum Disorder 2023–2027 and the Strategic Framework for the Protection, Promotion and Revitalization of Spanish Sign Language 2023–2030.

10. Furthermore, the State party reported that, in 2022 and 2023, the Centre for Documentation and Research on Disability of the Royal Council on Disability conducted a study on transforming schools into inclusive and accessible spaces.[5] The study produced 12 recommendations. Other initiatives of the Royal Council include the development, in 2023, of general guidelines for teaching teams in primary and secondary schools,[6] a study on the situation of teaching and research staff with disabilities in the Spanish university system and the Sixth Study on the Inclusion of Persons with Disabilities in the Spanish University System.[7]

11. In addition, the State party reported on the adoption of Royal Decree No. 674/2023 of 18 July approving the regulations on the conditions of use of Spanish Sign Language and support devices for oral communication for deaf, hard-of-hearing and deafblind persons.

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[4] All the information provided by the State party can be found at: https://tbinternet.ohchr.org/_layouts/15/treatybodyexternal/SessionDetails1.aspx?SessionID=2687&Lang=en.

[5] Márquez, C. and Sánchez, S. (eds.), *Estudio sobre la transformación de las escuelas en espacios inclusivos y accesibles* [Study on transforming schools into inclusive and accessible spaces], Madrid, Royal Council on Disability, 2023.

[6] See https://www.rpdiscapacidad.gob.es/estudios-publicaciones/AlumnadoConAutismo.htm.

[7] See https://www.fundacionuniversia.net/content/dam/fundacionuniversia/pdf/VI%20Estudio%20Universidad%20y%20Discapacidad%20ACCESIBLE.pdf.

4. Measures for the development of an inclusive education plan under Organic Act No. 3/2020

12. The State party reported that the Ministry of Education, Vocational Training and Sport had been participating since 2022 in the Technical Support Instrument of the European Union, a multi-country project aimed at combating disparities in access to inclusive education in three Southern European countries.[8]

13. The State party also reported that the Ministry of Education, Vocational Training and Sport was developing various initiatives including technical cooperation with the autonomous communities, a regional cooperation programme for inclusive education launched in the 2022/23 academic year, the inclusive education forum for students with disabilities, scholarships and study grants, and support and training for teachers. In particular, the State party highlighted the regional cooperation programme for educational guidance, advancement and enrichment for facilities catering for particularly complex educational needs (the PROA+ Programme), which had received significant funding to support students with clear socio-educational vulnerabilities.

5. Measures related to the coronavirus disease (COVID-19) pandemic

14. The State party provided information on the Recovery, Transformation and Resilience Plan and on the regional cooperation programme for educational guidance, advancement and enrichment for facilities catering for particularly complex educational needs.

15. The State party referred to a report published in 2023 by the Information Network on Education in Europe (EURYDICE), which had indicated that Spain was one of the countries most committed to inclusive schooling in the region.

6. Statistics

16. The State party indicated that the percentage of students with “special educational needs” enrolled in mainstream education had increased from 83.4 per cent in the 2017/18 academic year to 83.8 per cent in the 2021/22 academic year.

17. The State party also reported that public spending on education as a percentage of gross domestic product had increased from 4.25 per cent in 2017 to 4.94 per cent in 2020 and that annual education spending per student had increased from €6,063 in 2017 to €6,622 in 2020.

18. The independent monitoring mechanism provided education statistics sourced from State authorities.

19. The following table shows the number of students who attended special schools between 2017 and 2023, according to data provided by the Ministry of Education, Vocational Training and Sport.

Students in special schools

The first figure indicates the number of students in specific special schools, the second figure indicates the number of students in separate units (special classes) in mainstream schools, and the third figure indicates the total number of students in special education:

2017/18:	27,095	9,417	36,515
2018/19:	27,327	10,173	37,500
2019/20:	27,384	10,684	38,068
2020/21:	27,695	11,212	38,907

[8] See https://commission.europa.eu/funding-tenders/find-funding/eu-funding-programmes/technical-support-instrument/technical-support-instrument-tsi_en?prefLang=es and https://portal.mineco.gob.es/es-es/economiayempresa/unidadmercado/asistencia_reformas/Paginas/asistencia_reformas.aspx#:~:text=El%20Instrumento%20de%20Apoyo%20T%C3%A9cnico,empleo%20y%20la%20inversi%C3%B3n%20sostenible.

2021/22:	27,677	12,208	39,885
2022/23:	27,926	13,595	41,521

20. The results of the 2020 survey of disability, personal autonomy and situations of dependency (EDAD 2020), conducted by the National Institute of Statistics, are as follows:

(a) Total number of students with disabilities attending school: 106,300;

(b) Number of students with disabilities not attending school: 500 (0.5 per cent);

(c) Number of students with disabilities in special schools: 20,400 (19.2 per cent);

(d) Number of students with disabilities in special classrooms in mainstream schools: 9,800 (9.2 per cent);

(e) Number of students with disabilities in mainstream schools with personalized support: 52,200 (49.1 per cent);

(f) Number of students with disabilities in mainstream schools without personalized support: 22,100 (20.8 per cent);

(g) Number of students with disabilities attending another type of school: 1,100 (1 per cent);

(h) Not stated: 300 (0.3 per cent);

(i) 29.1 per cent of students with disabilities had missed more than eight days of school in the previous school year because of their disability;

(j) According to the survey, 57 per cent of persons with disabilities aged 16 years and over had a primary-school level of education or lower and only 10.6 per cent had completed higher education.

21. The Committee also had access to online statistical information provided by authorities in the State party, including the official statistics published by the Ministry of Education, Vocational Training and Sport and the National Institute of Statistics, which are discussed in chapter III of the present report.

B. Developments reported by other sources[9]

22. Other sources have submitted information to the Committee about the developments that have taken place in the State party since the report published by the Committee in 2017.

23. These sources reported several developments concerning the implementation of the right to an inclusive, quality education that tallied with the information provided by the State party. They also provided information on several implementation gaps and ongoing challenges with respect to the full inclusion of persons with disabilities in quality education in areas relating to legislation; societal awareness; the right of persons with disabilities to non-discrimination; the implementation of the inclusive education plan; the implementation of the right to an inclusive, quality education in the autonomous communities; holders of the right to an inclusive, quality education; the system of psychological/educational assessments and decisions on schooling; accessibility within the education system; the system of support; and, where appropriate, reasonable accommodation in the mainstream education system, the awarding of education certificates to students with disabilities, investment in mainstream and special education, and court decisions.

24. The Committee's analysis of the information available on developments in the State party is presented in the following chapter of the report.

[9] This includes information provided by organizations for persons with disabilities (in particular SOLCOM), civil society organizations, the Spanish Committee of Representatives of Persons with Disabilities and the independent monitoring mechanism officially designated by the State party under article 33 (2) of the Convention.

III. Committee's evaluation

25. The Committee notes that a range of positions, opinions and political and social agendas exist in the State party concerning the scope of inclusive education. Before beginning its evaluation of the status of the State party's implementation of article 24 of the Convention and of its 2017 recommendations, and pursuant to the Convention, its general comment No. 4 (2016), the recommendations made in the inquiry report and the general recommendations concerning inclusive education contained in its Views in *Calleja Loma and Calleja Lucas v. Spain*,[10] the Committee wishes to recall that:

(a) The Convention is an international human rights treaty that has been ratified by the State party and which is therefore legally binding on all authorities of the State party that are part of the executive, legislative or judicial branches and/or that have jurisdiction at the national level or in autonomous communities, autonomous cities, provincial councils or municipalities;

(b) Inclusive, quality education for persons with disabilities is a right recognized in the Convention and not merely a general principle or a standard to be applied in the design of public policies;

(c) The holders of the right to inclusive, quality education are persons with disabilities themselves, and not their parents or other family members; the latter, however, have a duty of care and should provide support for access to inclusive, quality education;

(d) All State party authorities, at all levels, have an obligation to ensure that persons with disabilities are not excluded from the general education system on the basis of disability;

(e) The enrolment of persons with disabilities in special schools constitutes segregation on the basis of disability and is therefore discriminatory, and, consequently, incompatible with the Convention;

(f) The obligation to eradicate discrimination against persons with disabilities, in law and in practice, is of immediate effect and is not subject to progressive implementation;

(g) The right to inclusive, quality education is incompatible with the parallel existence of two education systems, namely the mainstream system and the special system;

(h) The Convention does not recognize a right to special education;

(i) The quality of education must be ensured in the mainstream education system through the provision of individualized support and, where appropriate, reasonable accommodations, as part of a process intended to transform the education system;

(j) All persons with disabilities, irrespective of the level of individualized support they require, have the right to inclusive, quality education. The fact that a person with a disability requires significant levels of individualized support cannot be used as justification for excluding him or her from the mainstream education system and placing him or her in the segregated special education system;

(k) Protecting persons with disabilities from discrimination, at all levels of education and in all educational settings, is distinguished through the duty of all State party authorities at all levels to ensure that no person with a disability is excluded from the mainstream education system on the basis of disability and to ensure that, in the mainstream education system, persons with disabilities receive individualized support and, where appropriate, reasonable accommodation. The degree to which such individualized support and, where appropriate, reasonable accommodation is required by persons with disabilities cannot justify their segregation in special schools or in separate units within mainstream classes.

[10] CRPD/C/23/D/41/2017.

A. Commitment and willingness of the State party to give effect to the right to inclusive, quality education in the mainstream education system

26. The Committee welcomes the information provided by the State party on the various legislative measures, public policies, plans, strategies and initiatives in place, which are summarized in chapter II of the present report. It also welcomes the State party's assertion that the process of introducing inclusive education is currently under way in Spain.

27. However, 16 years after the Convention entered into force for the State party, the Committee is concerned about the sustainability of its commitment, at all levels, to inclusive, quality education in the mainstream education system. The information available indicates, inter alia, that: (a) during the passage through Congress of Organic Act No. 3/2020, several parliamentary groups, which in 2023 make up more than half of the autonomous governments, advocated for special education; (b) in 2021, a parliamentary group filed a constitutional challenge against Organic Act No. 3/2020, in which it claimed that segregated special education was compatible with article 27 of the Spanish Constitution; (c) some autonomous communities continue to adopt legislation that perpetuates segregated special education, for example, Act No. 1/2022 of 10 February, the Comprehensive Act on Freedom of Choice in Education in the Community of Madrid, article 5 (2) (b) of which states that enrolment in specific special schools or units shall be granted when the educational needs of the students necessitate specialized support or curricular or organizational adaptations that are difficult or impossible to accommodate effectively in a mainstream setting; and (c) the available statistics, mentioned in chapter II of the present report, reveal that segregated special education continues to exist, either in special schools or in special classes (separate units or classes) in mainstream schools. The Committee recalls that in 2017, the State party adopted a State Pact against Gender-Based Violence, which demonstrates the State's will to eliminate this scourge. The Committee encourages the State party to continue exploring the possibility of designing a State pact on achieving inclusive, quality education that will ensure that the progress made to date is sustained.

B. National legislation

28. The Committee welcomes the transformational measures introduced in the education system through Organic Act No. 3/2020. However, the Committee is concerned that in the amendments to Organic Act No. 3/2020, article 74 (1) of the previous version of the legislation (Organic Act No. 2/2006) was retained. That article provides the following:

> The schooling of students with special educational needs shall be governed by the principles of achievement of normality and inclusion. Schools must ensure that students are not subject to discrimination and that they enjoy effective equality in enrolling and remaining in the educational system. Measures to ensure flexibility at the various levels of education may be introduced if deemed necessary. Enrolment in special schools or units, which may continue up to the age of 21 years, shall be resorted to only when the needs of the student cannot be met by applying the diversity measures in place in mainstream schools.

The Committee is particularly concerned that national legislation does not recognize the right of persons with disabilities to inclusive, quality education and treats it merely as a principle of the education system. The Committee is also concerned that the legislation perpetuates segregated special education based on a biomedical approach focused on the needs of students with disabilities, and that students with significant support requirements continue to be segregated from regular education.

29. The Committee is concerned that, pursuant to the fourth additional provision of Organic Act No. 3/2020, the education authorities continue to give the necessary support to special schools to enable them to provide schooling for students with highly specialized needs, thereby perpetuating educational segregation, as well as acting as reference and support centres for mainstream schools.

30. The Committee reminds the State party that, in accordance with its general comment No. 4 (2016), States parties have a specific and continuing obligation to move as

expeditiously and effectively as possible towards the realization of article 24. This is not compatible with sustaining two systems of education: a mainstream education system and a special/segregated education system.

C. Jurisprudence of the State party's high courts

31. The Committee is concerned that, in judgment No. 34/2023 of 18 April 2023, the Constitutional Court continues to consider inclusive education to be a general principle of the education system rather than a right of persons with disabilities.

32. The Committee is also concerned that, in the above-mentioned judgment, the Constitutional Court recognized segregated special education as being compatible with the Constitution despite the fact that, pursuant to article 96 of the Constitution, the Convention, like other validly concluded international treaties, became part of the domestic legal order once it had been officially published in Spain and the fact that, pursuant to article 10 (2) of the Constitution, the rules concerning the fundamental rights and freedoms recognized by the Constitution must be interpreted in accordance with the Universal Declaration of Human Rights and the international human rights treaties and agreements ratified by Spain. Indeed, the Court states that "the changes introduced by Organic Act No. 3/2020 relate not to the application of the principle of 'inclusion' of students with barriers to learning resulting from a disability, a principle that was already set out in the original wording of [Organic Act No. 2/2006], but to the stipulation that only 'students with highly specialized needs' should be enrolled in 'special schools' that are in receipt of public 'funds'".

33. The Committee reminds the State party that, in accordance with paragraph 18 of its general comment No. 4 (2016), for article 24 (2) (a) of the Convention to be implemented, the exclusion of persons with disabilities from the general education system should be prohibited.

D. Non-discrimination and reasonable accommodation

34. The Committee is also concerned that the Constitutional Court has continued to find, as it did in 2014, that the impossibility of granting reasonable accommodation justifies educational segregation in special schools. Indeed, according to the Court:

> The education authorities must encourage inclusive education for students with disabilities and may make provision for their enrolment in special schools only when the adjustments required for such inclusion are deemed to be disproportionate or unreasonable. In the latter case, out of respect for the fundamental and legal rights affected, in the terms we have previously stated, the authorities should explain the reasons why they have selected this option, that is to say, why they have deemed it unfeasible to accommodate the student in a mainstream school and agreed to place him or her in a special school.

35. The Committee also reminds the State party that for article 24 (2) (a) of the Convention to be implemented, the exclusion of persons with disabilities from the general education system should be prohibited, including through any legislative or regulatory provisions that limit their inclusion on the basis of their impairment or the degree of that impairment, such as by conditioning inclusion on the extent of the potential of the individual or by alleging a disproportionate and undue burden to evade the obligation to provide reasonable accommodation.[11]

E. Psychological/educational assessments and decisions on schooling

36. The Committee takes note of the State party's responses to the questions raised by the Committee during the follow-up dialogue regarding psychological/educational assessments. According to the responses, such assessments contribute to improving educational practices

[11] General comment No. 4, para. 18.

concerning respect for diversity and enhance responsiveness in adjusting educational provision; furthermore, they are not based on a medical model and allow for the prevention, detection and identification of students' educational needs.

37. The Committee welcomes the information provided by the State party according to which articles 84 and 85 of Organic Act No. 3/2020 establish that all schools in receipt of public funds must have equal admission criteria that exclude the possibility of discrimination on the basis of disability or other grounds.

38. The Committee is concerned, however, that, according to the information available, in practice, such psychological/educational assessments and decisions on schooling, and the decisions based thereon, continue to lead to students with disabilities being excluded from the mainstream education system and redirected to segregated special schools, rather than being included and provided with individualized support. Early identification of the educational needs of students with disabilities should never lead to their exclusion from inclusive, quality mainstream education on the basis that such needs, including access to quality education, would be better served in a segregated special education setting.

39. The Committee remains concerned that this educational segregation affects persons with disabilities who require high levels of support, including persons with intellectual disabilities and autistic persons, as revealed in the 2021 report Moving Toward Inclusive Education – A review of the regulations governing support for students with special educational needs in the autonomous communities.[12] Released by the Ministry of Education, Vocational Training and Sport, the report shows that in different autonomous communities, decisions on placement in special schools are taken on the basis of different scales for categorizing students with high support needs.

40. The Committee reminds the State party that for article 4 (1) (b) of the Convention to be implemented, States parties should take all appropriate measures, including legislation, to modify or abolish existing laws, regulations, customs and practices that constitute discrimination against persons with disabilities and that are in violation of article 24.[13]

41. The Committee appreciates that article 74 (2) of Organic Act No. 3/2020 provides for the consideration of the best interests of the child and states that parents or legal guardians must be heard in decision-making processes concerning schooling.

42. The Committee notes paragraph (h) of the fourth additional provision of the above-mentioned Constitutional Court judgment, which states that, in addition to the consideration of the best interests of the child in decisions concerning his or her schooling, "the material means and the environment in which inclusion will be achieved in practice" should also be taken into account. While, as recognized by the Committee, any determination of the best interests of a child with a disability must consider the child's own views and individual identity, the preservation of the family, care, protection and safety of the child, any particular vulnerability, and the child's right to health and education,[14] the Committee is concerned that the best interests of the child are invoked in the State party to continue to justify educational segregation in special schools or special classes (separate units) in mainstream education.

43. The Committee welcomes the fact that the amendment to article 74 (2) of Organic Act No. 3/2020 establishes that the education authorities must regulate the procedures applied in resolving any disagreements that arise in decision-making processes concerning schooling. However, it notes that this article states that, in addition to the "best interests of the child", the "wishes of families who express a preference for the most inclusive setting" will also be taken into account, which seems to indicate that families who are in favour of mainstream schooling may experience greater opposition from the authorities than those who express a preference for a "less inclusive" setting.

44. The Committee has continued to receive testimonies from parents who would prefer their child to be accommodated in an inclusive mainstream education setting with support.

[12] See https://www.cedid.es/es/documentacion/catalogo/Record/571723.
[13] General comment No. 4 (2016), para. 19.
[14] Ibid., para. 47.

Such parents note: (a) the barriers, in terms of attitudes and behaviour, that they regularly face from the autonomous educational authorities, education departments and staff from social, psychological and educational evaluation teams and education centres; (b) the lengthy administrative and judicial processes involved in attempting to challenge a decision to place a child in a special school; and (c) the negative impact, on their own mental health and that of their children with disabilities, of such attitudes and behaviours and the burden of such a complex bureaucracy of administrative and judicial processes. The Committee remains concerned about these practices, which leave many parents of children with disabilities in a situation of extreme vulnerability.

F. Educational segregation of specific groups of persons with disabilities

45. The Committee takes note of the 2023 report released by the National Schools Council on the state of the education system during the 2021/22 academic year. According to the report, 39,885 students with special educational needs attended specific special schools during that period. The report also indicates that, with regard to the distribution of students with special educational needs, the categories of disability most frequently recorded in the special schools were intellectual disabilities (40.8 per cent), pervasive developmental disorders (27.4 per cent) and multiple disabilities (18.4 per cent). On the other hand, in mainstream settings, the most frequently recorded categories were pervasive developmental disorders (28.2 per cent), severe behavioural and personality disorders (25.5 per cent) and intellectual disabilities (24.2 per cent).

46. The Committee is concerned that educational segregation disproportionately affects persons with intellectual disabilities, who account for up to 40.8 per cent of students attending special schools.

G. Inclusive education plan

47. The Committee takes note of the fourth additional provision of Organic Act No. 3/2020, on the development of schooling for students with special educational needs. The provision states the following:

> The Government, in cooperation with the education authorities, will develop a plan to ensure that, within 10 years, [...] mainstream schools will have the necessary resources to be able to accommodate students with disabilities in the best possible conditions. Education authorities will continue to provide the necessary support to special schools to enable them to provide schooling for students with highly specialized needs, in addition to acting as reference and support centres for mainstream schools.

48. The Committee notes that in a 2022 report, the Spanish Committee of Representatives of Persons with Disabilities, an independent monitoring mechanism, requested the Ministry of Education, Vocational Training and Sport to adopt the inclusive education plan provided for in the fourth additional provision of Organic Act No. 3/2020. In its 2023 report,[15] the mechanism reiterated its request for the Ministry to urgently approve such a plan. In the same report, it expressed concern about the available information, which indicated that a comprehensive plan would not be drafted but that programmes would be developed by the autonomous communities.

49. The Committee takes note of the information provided by the delegation of the State party during the follow-up dialogue, according to which the plan has already been finalized and is being implemented. The Committee wishes to draw the State party's attention to the fact that the independent monitoring mechanism and the organizations of persons with disabilities that participated in the follow-up dialogue were not aware of the content of the plan.

[15] See https://cermi.es/novedad/informe-espana-2023-derechos-humanos-y-discapacidad.

50. The Committee is concerned about the delay in adopting the comprehensive plan. It also reminds the State party that to implement their obligations under article 4 (3), States parties should include the obligation to closely consult and actively involve persons with disabilities, through their own organizations, in legal and regulatory frameworks and procedures across all levels and branches of Government. States parties should also consider consultations with, and the inclusion of, persons with disabilities as a mandatory step prior to the approval of laws, regulations and policies, whether mainstream or disability-specific. Therefore, consultations should begin in the early stages and provide an input to the final product in all decision-making processes. Consultations should include organizations representing the wide diversity of persons with disabilities, at the local, national, regional and international levels.[16] Consistent with article 4 (3) of the Convention, States parties must consult with and actively involve persons with disabilities, including children with disabilities, through their representative organizations, in all aspects of planning, implementation, monitoring and evaluation of inclusive education policies. Persons with disabilities and, when appropriate, their families, must be recognized as partners and not merely recipients of education.[17]

51. The Committee reminds the State party of the need for the inclusive education plan to be aligned with the Convention and the Committee's general comment No. 4 (2016) on the right to inclusive education.

H. Holders of the right to inclusive, quality education

52. The Committee takes note of the wording of paragraph (h) of the fourth additional provision of the above-mentioned Constitutional Court judgment, which states that parents "not only have the right to choose the 'religious and moral training' their children receive (art. 27 (3) of the Constitution), but must in general 'provide [them] with assistance of all kinds [...] until they reach the age of majority and in other cases specified by law' (art. 39 (3) of the Constitution), a duty that includes caring for them, watching over them and removing them from any situation the parents consider to be dangerous" (arts. 154 and 158 of the Civil Code).

53. The Committee reminds the State party that inclusive, quality education is a fundamental human right of every student. Notably, education is the right of the individual learner and not, in the case of children, the right of a parent or caregiver. Parental responsibilities in this regard are subordinate to the rights of the child.[18] The Committee also reminds the State party that the duty of care and support invested in the parents of persons with disabilities should be interpreted in the light of the provisions of the Convention, which recognizes the right of persons with disabilities to inclusive, quality education in mainstream schools. The Committee also recalls that education in special schools or in special classes or separate units in mainstream schools does not constitute a form of inclusion or protection of the rights of persons with disabilities.[19]

I. Raising awareness in educational settings and in society

54. The Committee notes that the State party has prepared a discussion document setting out 24 proposals for reforms to improve the teaching profession. It also notes that the Ministry of Education, Vocational Training and Sport is working with the autonomous communities on the development of a professional competency framework for the teaching profession. It further notes that Organic Act No. 3/2022 of 31 March provides for the ongoing upgrading of the competencies of teaching and training staff to enable them to design and adapt learning processes, especially for students with specific needs, that schools must draw up plans to promote coexistence and that education authorities must adopt protocols to deal with bullying.

[16] Committee's general comment No. 7 (2018), para. 15.
[17] Committee's general comment No. 4 (2016), para. 7.
[18] Ibid., para. 10 (a).
[19] Ibid., para. 11.

55. The Committee takes note of the data from the EDAD 2020 survey, according to which 26.9 per cent of persons with disabilities aged 6 years and older who participated in the survey considered that they had experienced discrimination, at school or in other educational settings, on the basis of their disability. With regard to bullying or cyberbullying on the basis of disability among students with disabilities, 14.13 per cent of the survey respondents reported that they had been bullied more than once in an educational setting.[20]

56. The Committee remains concerned about reports of bullying of persons with disabilities in schools by students, parents and even teachers, in the form of repeated verbal harassment and the use of physical and mechanical restraints. The Committee is also concerned about the inadequacy of the measures taken by the responsible authorities to eradicate these practices, effectively investigate cases of bullying and impose proportionate sanctions on offenders.

57. The Committee is also concerned about the inadequacy of general campaigns to raise awareness in society about the right of persons with disabilities to inclusive, quality education and about the fact that some civil society associations continue to advocate, including on social media, for segregated special education, for example the Plataforma Educación Inclusiva Sí, Especial también (Platform for Inclusive and Special Education), the Spanish Council for the Rights of Persons with Disabilities and Dependent Persons and the National Association of Special Schools.

58. The Committee recalls that stereotypes, prejudices and harmful practices constitute barriers to access and effective learning in the education system and that States parties should take measures to create a culture of diversity, encourage participation and involvement in the life of the community and emphasize inclusive education as a means of achieving quality education for all learners, with and without disabilities, with the support of the entire educational community.

J. Awareness-raising and initiatives carried out by national authorities and autonomous community governments and parliaments

59. The Committee takes note of the division of powers within the State party, under which the State, through the Ministry of Education, Vocational Training and Sport, is responsible for the general organization of the education system and each autonomous community is responsible for the development of government regulations and the management of the school system within its territory. It also notes that the State and the autonomous communities coordinate under various mechanisms of the regional cooperation groups and through regional cooperation programmes approved by the Sectorial Conference on Education.

60. The Committee takes note of the information provided by the State party on various initiatives taken by autonomous communities to promote the educational inclusion of persons with disabilities, such as the measures taken in the Autonomous Community of Catalonia to prevent school segregation and the vulnerability index introduced in the Autonomous Community of the Basque Country for use in setting aside school places.

61. The Committee is concerned, however, that parliamentary groups and the authorities and parliaments of some autonomous communities continue to advocate for education in special schools or classes. For example, in May 2019, the Parliament of Andalusia, sitting in plenary, approved a motion in support of the work of special schools and advocated for them to be retained. In November 2020, the Community of Madrid launched the “Not Without My School” social media campaign to promote segregated special education in schools. In September 2023, the Senate asked the Prime Minister to submit a bill for a general law on special education that would protect the rights of students with special educational needs and their school communities. Also in September 2023, a candidate for the position of prime minister pledged in his inaugural speech before the national legislature to uphold special

[20] See https://www.ine.es/dynt3/inebase/es/index.htm?padre=8495&capsel=8532.

education. In February 2024, a parliamentary group presented a motion before Congress to maintain segregated special education.

62. The Committee notes the State party's assertions that it takes time for a country's practices and culture to change; that transformation in education cannot be expected to be effected immediately, as it involves changes that come very slowly, require overcoming many types of inertia on the part of individuals and institutions and are implemented at different rhythms and speeds; and that the legitimate resistance to inclusion put forward by some groups must be recognized.

63. The Committee reminds the State party of article 24 of the Convention, which provides that persons with disabilities must not be excluded from the general education system on the basis of disability. That prohibition against discrimination on the basis of an impairment is of immediate effect and not to be implemented gradually.

64. The Committee also reminds the State party that the Convention establishes legal obligations that are binding on all the authorities of the State party, regardless of whether they are part of the executive, legislative or judicial branch or whether their areas of competence are national or regional in scope. At the domestic level, article 30 (3) of Act No. 25/2014 of 27 November on Treaties and Other International Agreements obligates the Government, the autonomous communities and the cities of Ceuta and Melilla to implement international treaties within their respective areas of competence. In addition, article 31 of the Act provides that the legal rules contained in international treaties duly entered into and officially published take precedence over any domestic laws that may conflict with them, except for the Constitution itself.

K. Curriculum adjustments, quality of education and support system

65. The Committee takes note of the State party's assertion that the transition to inclusive education requires, among other things, adjustments and the provision of resources adapted to the needs of all students. It also takes note of article 73 (2) of Organic Act No. 3/2020, which states that students with specific needs must be provided with support from the very moment that the needs are identified, and of the obligation placed on schools under article 72 (3) of the Act to make necessary curriculum adjustments. The State party referred to provisions of Royal Decree No. 157/2022 of 1 March, on the organization of and minimum education standards in primary education, and Royal Decree No. 217/2022 of 29 March, on the organization of and minimum education standards in compulsory secondary education, which call for the adoption of measures to support students with special educational needs.

66. The Committee also takes note of the scholarship programmes mentioned by the State party and the regional cooperation programme for educational guidance, advancement and enrichment at facilities catering for particularly complex educational needs (PROA+), which were run during the 2021/22, 2022/23 and 2023/24 school years and which are intended to improve academic performance and to prevent dropout among students at those publicly funded schools where there are a large number of young people with clear socio-educational vulnerabilities.

67. The Committee notes that 30 per cent of the students with disabilities between 6 and 15 years of age who are enrolled in school and participated in the 2020 survey of disability, personal autonomy and situations of dependency conducted by the National Institute of Statistics had received a scholarship or study grant because of their disability, and 56.6 per cent had not. Furthermore, 26.7 per cent of all persons with disabilities between 6 and 15 years of age who participated in the survey indicated that adjustments had been made in their classrooms or schools because of their disability, and 10 per cent said that such adjustments, while needed, had not been made. Among enrolled students with disabilities 16 years of age and older, the percentages were 13.5 per cent and 14.7 per cent, respectively. Regarding the availability of sufficient curriculum adjustments or support for educational inclusion, 51 per cent of all enrolled students with disabilities between 6 and 15 years of age who participated in the survey indicated that they had received sufficient adjustments, 23.7 per cent said that the adjustments had been insufficient and 10 per cent indicated that

they had not received such adjustments. Among the students 16 years of age and older, the percentages were 31.8 per cent, 12 per cent and 16.8 per cent, respectively.

68. The Committee remains concerned about available information indicating that the educational support and adjustment needs of students with intellectual disabilities, autism, Down syndrome and cerebral palsy and of deaf students are not fully met, jeopardizing their right to a quality education. The Committee is also concerned that reductions and cuts in educational support have been reported in some autonomous communities and that the absence and/or inadequacy of such support is often invoked to justify the referral of students with disabilities to segregated special schools. The Committee is further concerned that it is often the families who bear the cost of certain adjustments.

69. The Committee is also concerned that the independent monitoring mechanism continues to receive complaints that, because of the shortages of and/or insufficiencies in dedicated educational facilities and teaching and non-teaching staff, including teacher aides and hearing and language specialists, students with disabilities in many publicly funded schools are not provided with the educational environment that is best suited to their needs. In addition, the National Disability Observatory reported in 2020 that the families of students with disabilities enrolled in mainstream schools indicated that the main obstacles to educational inclusion were the lack of personalized support, the shortage of staff and technical resources and, in some cases, a lack of understanding and empathy, insufficient awareness of the needs of their family members with disabilities and the behaviour of other students.[21]

70. The Committee is also concerned that the limited and inadequate support system in mainstream schools pushes the families of children with disabilities to enrol their children in special schools, and that such limitations and inadequacies continue to be used by autonomous community governments, education authorities and parents' associations and groups to support the ongoing use of segregated special schools.

L. Investment in education

71. The State party indicated that since 2017, 227 mainstream schools and 4 special schools have been opened, bringing the total numbers to 24,102 and 470 respectively. According to figures provided by the State party, the enrolment of students with special educational needs in mainstream schools increased from 2.23 per cent (183,208 students) to 2.49 per cent (206,098 students), and the education budget increased from 4.25 per cent of gross domestic product in 2017 to 4.94 per cent in 2020. The Committee also takes note of the direct assistance programme for persons with disabilities.

72. The Committee notes that, according to statistics of the Ministry of Education, Vocational Training and Sport available online, total public spending on special education amounted to €1,350,998,900 in 2017, €1,434,253,500 in 2018, €1,564,294,400 in 2019, €1,623,998,700 in 2020, €1,676,625,600 in 2021 and €1,665,303,000 in 2022. The Committee received information, provided on an illustrative basis, on the opening and/or expansion of special schools in the Autonomous Communities of Aragon, the Balearic Islands, Castile-Leon, Extremadura, Madrid and Valencia.

73. The Committee also notes that, according to the same statistics, transfers from the education authorities to private special schools amounted to €351,395,100 in 2017, €365,609,600 in 2018, €407,715,400 in 2019, €409,563,900 in 2020, €441,735,800 in 2021 and €388,097,100 in 2022.

74. The Committee notes with concern that the State party continues to allocate public resources to special education and that the statistics show increases in this regard.

[21] See https://www.observatoriodeladiscapacidad.info/alumnado-con-discapacidad-y-educacion-inclusiva-en-espana/.

M. Compulsory secondary education leaving certificates and access to university education

75. The Committee appreciates that article 19 (2) of Royal Decree No. 217/2022 of 29 March, on the organization of and minimum education standards in compulsory secondary education, provides that the measures required to meet students' specific educational needs, taking account of their circumstances and their different paces of learning, must never have a discriminatory effect or prevent the beneficiaries of the measures from receiving the relevant leaving certificate.

76. The Committee is concerned, however, about available information indicating that students with disabilities, mainly students with intellectual disabilities who had had significant curriculum adjustments prior to the entry into force of Royal Decree No. 217/2022, have not received their compulsory secondary education leaving certificates even though they have met all the requirements under the curriculum.

77. According to 2020 data from the National Institute of Statistics, while 57 per cent of students with disabilities over the age of 16 years complete primary education, only 31 per cent complete secondary education and only 10 per cent have completed tertiary level education. In terms of access to employment, according to the Observatory on Disability and the Labour Market in Spain, in 2020, 80 per cent of young people with disabilities between 16 and 24 years of age were inactive, 11.7 per cent were unemployed and 8 per cent were employed.

78. Organic Act No. 3/2022 of 31 March on the Organization and Integration of Vocational Training, Royal Decree No. 659/2023 of 18 July on the Development of the Vocational Training System and Organic Act No. 2/2023 of 22 March on the University System, which contain provisions intended to facilitate the integration of persons with disabilities in these educational settings, have recently been adopted. However, the Committee has no information on their impact. With regard to vocational training, the Ombudsman indicated in his 2020 report that "there has been a considerable increase in complaints regarding the lack of places in public institutions and the obstacles to entering programmes outside the autonomous community of residence".[22]

N. Accessibility

79. The Committee takes note of the adoption of Royal Decree No. 193/2023 of 21 March, which sets out the basic requirements of accessibility and non-discrimination for persons with disabilities in terms of their access to and use of goods and services available to the public, and the Second National Plan on Universal Accessibility, "Accessible Spain", prepared in 2023 by the Ministry of Social Rights, Consumer Affairs and the 2030 Agenda.

80. The Committee also takes note of the adoption of Royal Decree No. 674/2023 of 18 July approving the regulations on the conditions of use of Spanish Sign Language and support devices for oral communication for deaf, hard-of-hearing and deafblind persons.

81. The Committee notes that the 2021 and 2022 reports of the Ombudsman pointed to the need to enhance all efforts and measures intended to make digital education tools more accessible and adapt them to the needs of students with hearing or visual impairment-related special educational needs. In addition, during the COVID-19 pandemic, the independent monitoring mechanism noted the lack of accessibility measures (captioning, audio description, sign language and Easy Read), especially for students with sensory, intellectual and developmental disabilities, on both the distance learning platforms introduced by the education authorities and the educational programmes broadcast on the children's channel adapted by the Ministry of Education and Vocational Training and Televisión Española to facilitate all students' learning while classes were suspended.

82. The Committee notes that, with regard to public buildings and urban environments, the results of the 2020 survey of disability, personal autonomy and situations of dependency

[22] See https://www.defensordelpueblo.es/informe-anual/informe-anual-2020/.

conducted by the National Institute of Statistics show that: (a) more than 1.5 million persons with disabilities (36.2 per cent of all persons with disabilities) reported difficulties in entering and using such spaces, especially inside buildings; (b) transportation poses problems for more than 1.7 million persons with disabilities, especially with respect to getting on and off vehicles and getting to a seat; and (c) more than 1.6 million people have difficulties using new information and communications technologies.[23]

83. The Committee also notes that, according to the *Analysis of the State of Rights of Persons with Disabilities and Identification of Future Challenges*, published in 2023 by the Royal Council on Disability, approximately one quarter of persons with disabilities in Spain live in rural areas and that persons with disabilities continue to face greater accessibility challenges in rural areas than in urban ones, challenges that relate to depopulation, precarious employment, the scarcity of services and isolation.

IV. Conclusions and recommendations

A. Conclusions

84. **The Committee notes that the State party has all the human, social, economic and financial resources and infrastructure needed to move forward in implementing the right of persons with disabilities to inclusive, quality education in the mainstream education system and to become a model in inclusive, quality education.**

85. **The Committee appreciates the series of legislative and public policy measures, strategies, plans and programmes put forward by the Government, especially in 2022 and 2023, to improve the regulatory and public policy framework, with a view to implementing the right of persons with disabilities to inclusive, quality education. It also appreciates that some autonomous communities actively promote inclusive, quality education and that organizations of persons with disabilities, parents of persons with disabilities and universities and research centres continue to actively advocate for inclusive, quality education, even in environments and under conditions that are often hostile.**

86. **The Committee notes with regret that the educational segregation of persons with disabilities through their placement in special schools and separate units in mainstream classrooms continues to be allowed under provisions that remain in effect in the State party's legislation (Organic Act No. 3/2020) and continues to be accepted by high courts, promoted by parliamentary groups, autonomous community parliaments and authorities and civil society groups, and put into practice by education authorities, including the education departments of the autonomous communities, local authorities and schools.**

87. **The Committee deplores the fact that the structural issues, problems and challenges that it previously assessed and that led it to adopt its inquiry report in 2017, and which it has also addressed in chapter II of the present follow-up report, have persisted and continue to contribute to the perpetuation of an education system that segregates, in practice, more than 40,000 persons with disabilities, 40 per cent of whom are persons with intellectual disabilities.**

88. **The Committee notes with concern that there is a risk of moving backwards in the implementation of the right to inclusive, quality education, as some authorities, including some autonomous community education authorities and governments, some parliamentary groups in the national legislature and in autonomous community parliaments, and certain social groups continue to advocate for special schools and propose reversing the measures adopted thus far to promote inclusive, quality education.**

[23] Royal Council on Disability, *Análisis sobre la situación de los derechos de las personas con discapacidad e identificación de retos de futuro* (2023).

B. Recommendations

89. **The Committee reiterates the recommendations contained in its 2017 inquiry report and in paragraphs 46 and 47 of its 2019 concluding observations[24] and the general recommendations contained in its Views in *Calleja Loma and Calleja Lucas v. Spain*.[25]**

90. **In particular, the Committee recommends that:**

(a) **The authorities and entities that have and exercise the power to introduce bills and those that are responsible for discussing, adopting and sanctioning them, both nationally and in the autonomous communities and at all educational levels, should:**

(i) **Repeal, as a matter of priority and urgency, all laws in force that allow or perpetuate the educational segregation of persons with disabilities through their placement in special schools or centres and separate units in mainstream classrooms;**

(ii) **Urgently amend or adopt laws to recognize inclusive, quality education as a right of persons with disabilities, include a non-rejection clause on grounds of disability so that no person with a disability is excluded from mainstream education, and include adequate budget lines, baselines, indicators and assessment systems, with the aim of fully developing an individualized support system for persons with disabilities in mainstream schools and with special attention paid to the schooling of persons with disabilities with high support needs and persons with intellectual disabilities. These laws must provide for all individualized curriculum adjustments and the adaptation of assessments and training for teaching and non-teaching staff working with persons with disabilities in mainstream schools;**

(b) **Parliamentary groups that have and exercise power to present motions, including in parliaments of autonomous communities, should ensure that any motions they introduce do not perpetuate the educational segregation of persons with disabilities through their placement in special schools or centres and separate units in mainstream classrooms, but rather promote their inclusion in the mainstream education system, with appropriate individualized support, curriculum adjustments and, where appropriate, reasonable accommodation to ensure the quality of their education;**

(c) **The courts of the State party and the Constitutional Court should review their case law and bring it into line with the Convention, recognizing that educational segregation through the placement of persons with disabilities in special schools and separate units in mainstream classrooms is not compatible with the Convention, which is part of the domestic law of the State party; that the coexistence of two educational systems, namely the mainstream system and the special system, is also not compatible with the Convention; and that whatever the needs of persons with disabilities may be in terms of support and, where appropriate, reasonable accommodation, those needs do not justify their exclusion from mainstream general education, even in cases of high support needs;**

(d) **The State Administration in general and the Ministry of Education, Vocational Training and Sport should adopt, without delay, the inclusive education plan provided for in the fourth additional provision of Organic Act No. 3/2020, ensuring that it conforms to the provisions of the Convention, general comment No. 4 (2016) on the right to inclusive education and the recommendations contained in the present report, that it contains public policy standards that allow for the coordination, coherence and harmonization needed for it to be implemented by all the autonomous communities, that there is close consultation with persons with disabilities and their representative organizations and that they participate actively in the design and implementation of the plan;**

[24] CRPD/C/ESP/CO/2-3.
[25] CRPD/C/23/D/41/2017.

(e) **All education authorities, including the education departments of the autonomous communities, local authorities and schools at all educational levels, should:**

(i) **Identify, with a view to their immediate elimination and repeal, all regulations, protocols and standards that have continued to allow decisions to place persons with disabilities – on the basis of psychological/educational assessments – in special schools or centres or in separate units in mainstream schools;**

(ii) **Ensure that psychological/educational assessments never result in or contribute to the removal of persons with disabilities from mainstream schools or to a proposal that they be placed in a special school or centre or in a separate unit in a mainstream classroom, and ensure that such assessments include the identification and development of individual support plans with curriculum adjustments and measures to eliminate relevant external barriers so as to guarantee the full exercise of the right of persons with disabilities to inclusive, quality education and to implement protocols for the prompt processing of, consideration of and decision-making on requests for reasonable accommodation from persons with disabilities and their families;**

(iii) **Take measures to ensure that budget lines for education cover individualized support for persons with disabilities in mainstream schools;**

(iv) **Actively promote the accessibility of mainstream schools, educational materials, information and communications, including information and communications technologies, and various augmentative and alternative modes, means and formats of communication, taking into account the diversity of persons with disabilities;**

(v) **Effectively implement article 74 (2) of Organic Act No. 3/2020, on mechanisms for resolving disagreements;**

(vi) **Effectively implement protocols for the prevention and punishment of incidents of school bullying, cyberbullying, sexual harassment, gender-based violence and any other manifestation of violence against persons with disabilities;**

(vii) **Effectively and regularly implement the vocational training programmes provided for under the legislation in force, at all levels of education, for all teaching and non-teaching staff working with and assisting persons with disabilities and ensure that the programmes are consistent with the human rights model for persons with disabilities, the Convention, and the Committee's general comment No. 4 (2016);**

(viii) **Implement periodic awareness-raising campaigns for the general public on the right of persons with disabilities to inclusive, quality education, with an emphasis placed on preventing and combating discrimination, stereotypes, prejudices and harmful practices, including school bullying, against persons with disabilities;**

(ix) **Consult closely and collaborate actively with persons with disabilities and their representative organizations in order to ensure their full participation in the implementation of the above recommendations;**

(f) **The National Institute of Statistics should continue to conduct its surveys on disability, personal autonomy and situations of dependency on a regular basis and consider including questions that will allow the implementation of the recommendations contained in the present report to be measured;**

(g) **The Ombudsman's Office should continue to include thematic sections on the rights of persons with disabilities in its annual reports and address in its assessments the implementation of the recommendations contained in the present report by all authorities of the State party, whether they are part of the executive, legislative or judicial branches and/or that have jurisdiction at the national level or in autonomous communities, autonomous cities, provincial councils or municipalities;**

(h) **The Spanish Committee of Representatives of Persons with Disabilities should include in its annual reports information on the implementation of the recommendations contained in the present report by all authorities of the State party, whether they are part of the executive, legislative or judicial branches and/or that have jurisdiction at the national level or in autonomous communities, autonomous cities, provincial councils or municipalities.**

V. Follow-up procedure

91. **The Committee, having considered the available information, including the information submitted in writing by the State party, organizations of persons with disabilities and the independent monitoring mechanism (the Spanish Committee of Representatives of Persons with Disabilities) and the information provided during the follow-up dialogue held on 18 March 2024, decides:**

(a) **To continue the proceedings in follow-up to the inquiry report, in accordance with article 7 of the Optional Protocol and the Committee's rules of procedure;**

(b) **To request that the State party submit a follow-up report in March 2029 with information on the implementation of the recommendations contained in paragraphs 89 and 90 of the present report.**